TAFADZWA ADELAIDE MWALE (NEE MATIMBA)
versus
ISAACS YESAKE MWALE

HIGH COURT OF ZIMBABWE
PHILLIPS J
HARARE ;13 October 2025; 7 November 2025; 10 November 2025; 12 November 2025; 17 November 2025, 20 July 2026

Summons Commencing Action

F Mabungu and M. Moyo, for the Plaintiff
P Musimwa, for the Defendant.

Introduction

PHILLIPS J:

The parties were married on 8 August 2010 and although they did not have children together, they each had children of their own. The parties have agreed that the marriage relationship has irretrievably broken down but what they cannot agree on is the distribution of Stand Number 336 of Lot 12 Philadelphia Township, Borrowdale, Harare (herein after referred to as “the Stand"), which the Plaintiff is claiming 95% in her favour and 5% to the Defendant, together with an equivalent allocation of the outstanding balance on the stand which still owes an amount USD 34438.27. The parties currently both live at the property on the stand with the plaintiff occupying the upstairs and the defendant occupying the downstairs area of the property.

Facts

The plaintiff met the defendant in October 2009; she was working at the United Nations Information Centre which is where she is still working earning a very good salary. The defendant was working for ZESA Headquarters as a transport officer at the time, although his salary was not bad, it was definitely less than the plaintiff. The plaintiff told the court that when

they initially got married, they lived in Hatfield, then they moved to Marlborough, in a property owned by a company, until they then purchased the stand in question in August 2017 for USD$68,000 from Africa Rapid Homes; it was registered in both their names. She told the court that she got a loan from StanChart Bank for USD$25,000 which was used as the initial payment. The plaintiff produced various receipts and statements including a joint bank statement between herself and the defendant. The joint bank statement was said to have been set up in January 2017 and the parties' salaries were said to have been going into that joint account for a period stretching to 31 March 2019 where -after the account was only the plaintiff's.

The plaintiff told the court that their joint account funded external school fees for the defendant's children who were in Ukraine and Pretoria as well as her own children and some funds was used towards the stand. She gave evidence that towards the purchase of the stand, USD$48,876 has been paid whilst the USD$34,438.27 remains unpaid because they paid jointly for USD$16,828.30 but she paid USD$885 on her own for 17 months. She further told the court that whilst the defendant contributed to the purchase of the stand, he did not contribute to its development. The property has 9 bedrooms, 2 kitchens and 2 lounges. She told the court that besides her UN salary, she obtained a loan from her employer, she got a reimbursement from McDowels that went towards both the purchase and development of the stand and she even sold her shares from CBZ Bank. Testimony was also given that the defendant was last employed in December 2019 but had gone to Zambia to set up a business there which the plaintiff also helped to fund.

The defendant gave his testimony confirming that the deposit was from a loan that the plaintiff had taken from StanChart then the payments were from their joint account. He told the court that he had other deposits that were made through his personal Stanbic account although he failed to provide the bank statements because the bank wanted to charge him US$500 for bank statements from 2017 to date. His testimony was that he contributed 80 thousand bricks, stones and 30 tonnes of cement which went to the foundation on the stand. Further he told the court that as a man, he threw away many invoices whilst the plaintiff was the treasurer and secretary so she kept the invoices. The defendant produced several quotations, some were a quotation for the timber, a quotation for the tile center, a quotation for the solar and for the gutters. The defendant

told the court that everything they did, they did as a couple and that their roles were interlinked. He said that he could not have refused to contribute to the stand because that is his retirement home and confirmed that there was still more than USD$30,000 outstanding due to the developer.

The defendant was surprised that the joint account was no longer operating but confirmed that his last deposit was in 2019 or 2020. Whilst giving evidence, he mentioned that although he had several properties he had sold them "when things got tight with the kids in school," the houses kept him afloat but now he has no other property besides the stand. He told the court that there was a time that the plaintiff had financial problems with her children who where in college so the loans she obtained were not all for the stand. He further stated that he contributed over USD$40,000 into the joint account although he also conceded that there was nothing before the court to prove all the contributions claimed. The defendant conceded that although he sold properties in Chinhoyi, Gweru, Norton and Mutare, he did not use any of the proceeds towards the stand in question. He confirmed that during the subsistence of the marriage, in September 2020, he left for Zambia for a personal venture and during that time the developments at the stand happened in his absence. He also stated that the property is now worth USD$200,000 although no valuation was provided to the court. The defendant's evidence is that he does not dispute that the plaintiff contributed more financially but there are items such as the electricity which are a part of his work benefits which the plaintiff currently benefits from and this increase his entitlement to the stand to at least 50%.

Relief Sought

Plaintiff in her summons and declaration prayed for the following:

> "1. A decree of divorce;
>
> 2. An order for division of matrimonial property in terms of paragraphs 9, 10, 11, 12, 14 and 15 of the declaration
>
> 3. Each party to bear its own costs of suit."

Issues

The issues for determination have been narrowed as follows:

a) Whether or not there is a valid counterclaim before the Court.

b) What constitutes a fair and equitable distribution of the matrimonial property.

c) Who should bear costs.

Applicable Law

The law relating to the distribution of assets upon divorce is set out in *Section 7 (1)(a) of the Matrimonial Causes Act, [Chapter 5:13],* which provides as follows:-

> "…an appropriate court may make an order with regard to –
>
> (a) the division, apportionment, or distribution of the assets of the spouses including an order that any asset be transferred from one spouse to the other;"

The court must further have regard to all the circumstances of the case including the following factors set out in *Section 7 (4)* which include:-

> "(a) the income-earning capacity, assets, and other financial resources which each spouse and child has or is likely to have in the foreseeable future;
>
> (b) the financial needs, obligations, and responsibilities which each spouse and child has or is likely to have in the foreseeable future;
>
> (c) the standard of living of the family, including the manner in which any child was being educated or trained or expected to be educated or trained;
>
> (d) the age and physical and mental condition of each spouse and child;
>
> (e) the direct or indirect contribution made by each spouse to the family, including contributions made by looking after the home and caring for the family and any other domestic duties;
>
> (f) the value to either of the spouses or to any child of any benefit, including a pension or gratuity, which such spouse or child will lose as a result of the dissolution of the marriage;
>
> (g) the duration of the marriage.
>
> and in so doing the court shall endeavor as far as is reasonable and practicable and, having regard to their conduct, is just to do so, to place the spouses and children in the position they would have been in had a normal marriage relationship continued between the spouses."

In *Lafontant* vs *Kennedy* 2000(2) ZLR 280(S), the court stated as follows;

> "Where two persons own immovable property in undivided shares, there exists a rebuttable assumption that they own it in equal shares. The presumption will be strengthened when the parties are married to each other at the time ownership was acquired. The court cannot move away from that position on mere grounds of equity. It cannot give away A's property to B on the mere grounds that it will be fair and reasonable or just and equitable to do so. There must be more solid foundation in law to deviate from this assumption."

When it involves immovable property, due regard is to be given to the need to come up with a fair distribution as correctly held by CHITAKUNYE J (as he was then) in *Kwedza* v *Kwedza* HH 34-12 where he remarked:

> "It is only fair that whatever apportionment or distribution is done, it does not burden the defendant so much that he is left without accommodation."

In *Shenje* v *Shenje 2001 (1) ZLR 160 (H)* it was observed that there is need to place the needs of the parties at the centre and not their respective contributions. GILLESPIE J had this to say:

> "In deciding what is reasonable, practical and just in any division, the court is enjoined to have regard to all the circumstances of the case. A number of the more important, and more usual, circumstances are listed in the subsection. The list is not complete. It is not possible to give a complete list of all the possible relevant factors. The decision as to a property division order is an exercise of judicial discretion, based on all relevant factors, aimed at achieving a reasonable, practical and just division which secures for each party the advantage they can fairly expect from having been married to one another, and avoids the disadvantage, to the extent they are not inevitable, of becoming divorced."

In *Takafuma* v *Takafuma* 1994 (2) ZLR 103 (S) 107 C, the approach is not one of strict equality or mathematical division, but one that considers the direct and indirect contributions of each party, as well as the welfare of any minor children. MCNALLY JA made the following pronouncement;

> "The approach which I have outlined is consistent with an earlier decision of this court. In Ncube v Ncube (1993 (1) ZLR 39). KORSAH JA dealt with a similar situation at (pp 45-48) of the judgment. He adopted the approach of starting from a position of 50-50 ownership and only moving away from that position if the justice and equity of the case required it."

Application of the law to facts.

On the issue of the defendant's counterclaim, whilst there is no valid counterclaim before the court by the defendant to discuss, the defendant did submit that it was no longer pursuing this matter.

There is a *prima facie* case that supports the fact that the property in question, the stand, was jointly owned by the parties and this then, from the outset, would ordinarily entitles them to an equitable share on divorce. For the court to depart from this precedence there have to be

compelling reasons. Our case law is clear on the significance of a party holding a 50% share. As articulated in *Chapeyama* v *Chapeyama 2000 (2) ZLR 175 (SC)* the registration of a property in the names of husband and wife confers real rights in the property to both parties. In the case of *Paul Simango* v *Martha Simango SC 29/14* it was made clear that in divorce proceedings a joint owner of a property has a real right to a half share of the property even in circumstances where he/she might have no direct contribution to its acquisition.

The plaintiff and defendant have lived at the stand since 2017 although they did stay at other properties together before that . There were some submissions related to those properties that were placed in a Trust and an invitation to the court to, despite disregarding the defendant's counterclaim

> "and determine the matter solely on distribution of the Stand Number 336 of Lot 12 Philadelphia Township, Borrowdale, Harare with appropriate consideration of Defendant's contributions direct and indirect to properties held in trust as envisaged in the Supreme Court Case of *Kwedza* v *Kwedza* SC 73/14."

On these properties that the plaintiff is said to have placed into a trust without informing the defendant, they were registered in her name so she could deal with those as she pleased, in the same manner that the defendant sold his houses, he dealt with his as he chose. The "other properties" on both sides are no longer part of the matrimonial estate so it would not be fair to even consider them. This court will therefore only focus on the stand.

The court is enjoined to consider needs over recoupment of contributions. Whilst the defendant has acknowledged that he contributed less than the plaintiff, he needs a home and he only has the stand. Had a normal marriage continued, both the plaintiff and defendant would continue to stay at the stand but the parties' relationship has soured, the one party occupies one floor whilst the other party occupies another floor. It cannot be a good environment for the children even though most of them are now majors. The stand can only remain with one party.

The defendant is no longer employed and would find it difficult to both assist with the payment of the outstanding balance and even maintenance of the stand. It would not make sense to award him something that he can no longer sustain, it would be a waste of predominately the plaintiff's efforts and financial contributions. There is no question that hers were much more

than the defendant's, so her prejudice would be more. What this court is not convinced of however, is that the defendant is only entitled to 5%. Having been married to each other in excess of 13 years, even the defendant's indirect contributions should entitle him to a minimum of 30% of the value of the stand and the property thereon, this court therefore awards him that much but in lieu of him contributing to paying for the outstanding USD 34438.27, which he will no doubt struggle to contribute to considering that he told this court that he is no longer employed, 10% is deducted from the 30% awarded to him and he no longer has the obligation to pay off the stand. The plaintiff therefore is entitled to 80% of Stand 336 but she must pay off the balance to the developer herself. She further is entitled to buy out the defendant's 20% share within 6 months of the granting of this order. The stand shall be valued by an estate agent mutually agreed to by the parties within 10 working days of this order, failing such agreement, the estate agent is to be appointed by the Registrar.

Final Order

In the circumstances the following order is granted:

1. A decree of divorce;
2. The Plaintiff is awarded the following movable properties:
    i. Guest bedroom suite and mattress
    ii. Extra-large bed
    iii. Leather lounge
    iv. Brown Lounge Suite
    v. Blue Lounge Suite
    vi. Stove
    vii. Upright refrigerator
    viii. 52 Inch Television
    ix. 32 Inch Television
    x. 3 by 3 quarter beds
    xi. Toyota Vitz registration number AGF8651
    xii. 5.5 kva generator
3. The Defendant is awarded the following movable properties:

i. Display cabinet
ii. Main bedroom suite
iii. Dining table and chairs
iv. Microwave
v. Silver Mercedes Benz

4. The plaintiff is awarded 80% share of Stand Number 336 of Lot 12 Philadelphia Township measuring 3710 square metres, with the remaining 20% share being awarded to the Defendant.
5. Stand Number 336 of Lot 12 Philadelphia Township shall be valued by an estate agent mutually agreed to by the parties within 10 working days, failing such agreement, by the Registrar from his list of independent estate agents.
6. After valuation of Stand Number 336 in terms of paragraph 6 above, the Plaintiff is entitled to buy out the Defendant's 20% share in the said Stand within six months of the valuation.
7. Of the US$34,438.27 outstanding purchase price balance for Stand Number 336 of Lot 12 Philadelphia Township, the Plaintiff shall pay towards extinguishment of the same.
8. The defendant shall sign all the paperwork required to transfer or cede the relevant rights to the plaintiff, failing which the Sheriff of the High Court shall sign the required paperwork.
9. Each party to pay their own costs of suit.

PHILLIPS J……

Dube-Banda, Nzarayapenga & Partners, Plaintiff's Legal Practitioners

Machinga Mutandwa Legal Practitioners, Defendant's Legal Practitioners